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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

BENCH BINDER / HEARING PACKET

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

PLAINTIFF’S BENCH BINDER / HEARING PACKET

PURPOSE OF THIS PACKET

This bench binder is submitted for the Court’s convenience at oral argument. It maps each defense authority to the plaintiff’s pivot authority and provides a Q1-Q10 oral argument framework. For a consolidated fatal-defects bench brief in hybrid tribunal tone (standards and neutral framing, then requested relief and cross-references), see Section X after Section 1.

FRONT PAGE: THREE QUESTIONS THAT DECIDE BOTH MOTIONS

If the Court answers these three questions in sequence, both the Demurrer and the Anti-SLAPP motion resolve cleanly:

1. **What is the injury-producing act?** Not the claim label, not the surrounding litigation — the specific act alleged to have caused the harm. Under Park and Bonni, this must be isolated before any protection analysis.
2. **Was that act actually adjudicated in the underlying case?** Under Lucido and Mycogen, collateral estoppel requires that the precise issue was necessarily decided. A negligence verdict did not decide whether production history was concealed from successor counsel, whether court-facing provenance statements were false, or whether Plaintiff was deprived of a fair adversary hearing.
3. **If assumed true, does the alleged conduct describe ordinary litigation advocacy or procurement-level fraud impairing a fair hearing?** Under Kulchar, Westphal, and Kougasian, extrinsic fraud is conduct that prevents a party from fully presenting their case — not argument or evidence offered at trial. Ordinary advocacy is protected; procurement-level process corruption is not.

These three questions route the Court to the correct doctrinal framework and isolate defense authority that only applies after the gravamen has been miscategorized. For a ruling-oriented catalog of how each motion fails the governing standards, cross-reference Section X.

FRONT PAGE: WORST-QUESTION ANSWERS

Direct, concise responses to the defense’s strongest rhetorical points:

“Wasn’t the evidence eventually shown to the jury?”

Partial presentation under a corrupted procedural posture is not a cure. The concealment of the production history altered what Plaintiff could authenticate, subpoena, and argue before and during trial. Extrinsic fraud is measured by what was prevented, not by what finally leaked through. Kulchar asks whether a party was “kept in ignorance” such that they were “unable to present” their case — not whether a courtroom event eventually occurred.

“Why isn’t this just intrinsic fraud?”

Intrinsic fraud is perjury or false evidence at trial. Westphal v. Westphal (1942) 20 Cal.2d 393, 397. Extrinsic fraud operates outside the adjudicative process to prevent fair participation. The gravamen here is (a) out-of-court lulling and (b) file-transfer concealment to successor counsel — both pre-adjudicative, both operating outside the courtroom. That is the textbook extrinsic pattern.

“Why aren’t you just appealing trial rulings?”

Because this is not an appeal. It is an independent equitable action to set aside a judgment procured by extrinsic fraud. Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028; Olivera v. Grace (1942) 19 Cal.2d 570. Section 904.1 is a routing statute; it does not confer merits immunity on fraud in the procurement of the judgment.

“What exactly did Carbone and Chambers themselves do?”

The FAC alleges: (1) Chambers and Carbone held custody of the production history; (2) they transferred the litigation file to successor counsel without conveying that history; (3) they knew or recklessly disregarded that successor counsel would rely on the stripped file to make court-facing provenance representations; (4) CSAA, as institutional principal, directed and ratified that transfer. Agency principles do the rest. The conduct is institutional, not purely communicative, and falls outside Kimmel’s communicative-act privilege.

SECTION 1: TABBED PIVOT AUTHORITIES

TAB 1: PARK V. BOARD OF TRUSTEES (2017) 2 CAL.5TH 1057

Defense Use

Defendants cite Park for the proposition that “speech or petitioning activity itself” as the wrong supports Anti-SLAPP. (Anti-SLAPP MPA, p.13, ll.20-22)

What Defendants Do Not Address

The mandatory step-one gravamen analysis at pages 1062-1064.

Plaintiff’s Pivot

Park **requires** isolating the specific injury-producing act before proceeding to step two. The Court must ask: What is the gravamen of the FAC? Is the injury-producing act protected petitioning, or is it extrinsic fraud and process corruption?

Key Quote (2 Cal.5th at 1062)

“In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech.”

Application

The FAC’s gravamen is not petitioning itself. It is extrinsic fraud, tribunal reliance, and structural hearing impairment.

TAB 1A: BONNI V. ST. JOSEPH HEALTH SYSTEM (2021) 11 CAL.5TH 995

Role

Current controlling Supreme Court authority on Anti-SLAPP step one. Post-dates and refines Park. Not addressed by Defendants.

Key Holding (11 Cal.5th at 1010-1012)

The court must parse each claim and each alleged act separately. Label-based analysis that sweeps all conduct into a single “protected activity” bucket is reversible error.

1 **Application**

2 Defendants treat the FAC as a monolith of “litigation conduct.” Bonni requires a claim-by-claim,
3 act-by-act matrix. Applied here, out-of-court lulling, file-transfer concealment, and court-facing
4 misrepresentations must each be analyzed individually — and several fail protected-activity clas-
5 sification.

7 **TAB 1B: WILSON V. CABLE NEWS NETWORK, INC. (2019) 7 CAL.5TH**
8 **871**

9 **Role**

10 Supreme Court clarification of the element-vs-evidence distinction on Anti-SLAPP step one.

11 **Key Holding (7 Cal.5th at 884)**

12 The protected act must be an element of the claim, not merely evidence that supports the claim.
13 Conduct that is background or context, not the thing sued upon, is not protected activity.

14 **Application**

15 The defense recharacterizes every communication during litigation as protected petitioning. Wil-
16 son forbids that. The elements of extrinsic fraud are (1) concealment or misrepresentation, (2)
17 preventing full participation, (3) reliance, (4) a resulting unfair hearing. The “petitioning” Defen-
18 dants point to is evidence-level background, not element-level protected activity.

20 **TAB 2: KIMMEL V. GOLAND (1990) 51 CAL.3D 202**

21 **Defense Use**

22 Defendants do not cite Kimmel. They treat Civil Code section 47(b) as blanket immunity for all
23 “litigation conduct.”

24 **What Defendants Do Not Address**

25 The communications vs. conduct boundary.

1 **Plaintiff’s Pivot**

2 Under Kimmel, the litigation privilege protects qualifying **communications**, not every act dur-
3 ing litigation. Noncommunicative institutional conduct (file custody, production history failures,
4 agency oversight) falls outside section 47(b).

5 **Key Holding**

6 The privilege is limited to communicative acts. See also *Rusheen v. Cohen* (2006) 37 Cal.4th
7 1048, 1057.

8 **Application**

9 The FAC alleges noncommunicative conduct: file transfer failures, production history omissions,
10 institutional oversight failures. These are not “communications” under Kimmel.

11
12 **TAB 2A: RUSHEEN V. COHEN (2006) 37 CAL.4TH 1048**

13 **Role**

14 Defines the boundary of the litigation privilege for noncommunicative acts.

15 **Key Holding (37 Cal.4th at 1058)**

16 Noncommunicative conduct is privileged only where it is “necessarily related” to a specific priv-
17 ileged communication. The privilege is not a blanket shield for everything that occurs during
18 litigation.

19 **Application**

20 The file-transfer concealment and failure to convey production history are institutional duties owed
21 to successor counsel. They exist independent of any particular court-facing communication. The
22 “necessarily related” hook is absent. *Rusheen* therefore confirms rather than defeats Plaintiff’s
23 theory: § 47(b) does not reach noncommunicative institutional conduct.

TAB 3: ACTION APARTMENT (2007) 41 CAL.4TH 1232

Defense Use

Defendants do not cite Action Apartment. They assert litigation privilege without acknowledging exceptions.

What Defendants Do Not Address

The extrinsic fraud exception to the litigation privilege.

Plaintiff's Pivot

Action Apartment establishes that **extrinsic fraud is an exception** to the litigation privilege. The privilege does not protect fraud on the tribunal.

Key Discussion (41 Cal.4th at 1242-1247)

Discussion of Silberg, Albertson, and the boundaries of the litigation privilege in fraud contexts.

Application

The FAC alleges extrinsic fraud and tribunal reliance. This falls within Action Apartment's exception.

Candid Framing

Action Apartment is a **bounded secondary backstop**, not Plaintiff's primary § 47(b) line. Plaintiff's primary § 47(b) defense is the **Kimmel** communications-versus-conduct line (Tab 2), reinforced by **Rusheen's** "necessarily related" boundary (Tab 2A). Action Apartment is cited only to confirm that if any alleged act is deemed communicative, the extrinsic-fraud exception still applies. This ordering avoids overclaiming the reach of Action Apartment and keeps the doctrinal posture clean.

TAB 4: FLATLEY V. MAURO (2006) 39 CAL.4TH 299

Defense Use

Defendants quote Flatley's "finality of judgments" policy paragraph. (Anti-SLAPP MPA, p.9, ll.17-21)

1 **What Defendants Do Not Address**

2 Flatley's actual holding: the **illegal-conduct exception**.

3 **Plaintiff's Pivot**

4 Defendants quote Flatley's finality paragraph; Defendants' briefing does not discuss Flatley's
5 illegal-conduct limit. Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 holds that when petitioning
6 activity is illegal as a matter of law, it loses Anti-SLAPP protection.

7 **Key Holding (39 Cal.4th at 320-325)**

8 Illegal conduct exception: Anti-SLAPP does not protect petitioning that is criminal or tortious as
9 a matter of law.

10 **Application**

11 Fraud on the tribunal constitutes illegal conduct. Flatley does not provide the blanket protection
12 Defendants claim.

14 **TAB 5: MORADI-SHALAL (1988) 46 CAL.3D 287, P. 305**

15 **Defense Use**

16 Defendants implicitly rely on insurance-carrier immunity tropes.

17 **What Defendants Do Not Address**

18 Page 305: preservation of common law fraud jurisdiction.

19 **Plaintiff's Pivot**

20 Moradi-Shalal abrogated private actions under Ins. Code sec. 790.03(h). It did **not** eliminate
21 common law fraud claims against insurers.

22 **Key Quote (46 Cal.3d at 305)**

23 The Court preserved common law fraud jurisdiction despite the Ins. Code limitation.

24 **Application**

25 The FAC alleges fraud and agency liability against CSAA. Moradi-Shalal does not bar this.

26

TAB 6: CROWLEY V. KATLEMAN (1994) 8 CAL.4TH 666

Defense Use

Defendants cite Singh (collateral estoppel), F.E.V., Rico, and Wouldridge (collateral attack definitions) without Crowley.

What Defendants Do Not Address

The mandatory primary rights analysis.

Plaintiff's Pivot

Crowley requires mapping: (1) the parties; (2) the issues actually litigated; and (3) the primary right enforced. Without this analysis, collateral estoppel and collateral attack doctrines do not apply.

Key Holding

Primary rights doctrine: same parties, same issues, same primary right. Different primary rights = no preclusion.

Application

The underlying trial adjudicated negligence (personal injury). The FAC asserts equitable vacatur for extrinsic fraud (fair hearing). Different primary rights. No preclusion.

TAB 6A: MYCOGEN (2002) 28 CAL.4TH 888 AND LUCIDO V. SUPERIOR COURT (1990) 51 CAL.3D 335

Role

Two Supreme Court authorities that together supply the primary-rights test (Mycogen) and the “necessarily decided” requirement (Lucido) for any preclusion argument.

Mycogen Key Holding (28 Cal.4th at 904)

California’s primary-rights doctrine defines a cause of action by the right invaded, not the remedy sought or the legal theory labeled. Same injury + same primary right = same cause of action; different primary right = no preclusion.

1 **Lucido Key Holding (51 Cal.3d at 341-342)**

2 Collateral estoppel requires that the identical issue was “necessarily decided” in the prior action.
3 Merely related, overlapping, or incidentally touched issues do not trigger preclusion.

4 **Application**

5 The underlying negligence action vindicated the primary right to freedom from negligent bodily
6 harm. This action vindicates a different primary right: to a fair adversary hearing free of extrin-
7 sic fraud. Under Mycogen, no preclusion. Separately under Lucido, the negligence verdict did
8 not necessarily decide (a) whether production history was concealed from successor counsel, (b)
9 whether court-facing provenance statements were false, or (c) whether Plaintiff was deprived of
10 full participation. No “necessarily decided” finding = no collateral estoppel.

11
12 **TAB 7: KOU GASIAN V. TMSL, INC. (2004) 118 CAL.APP.4TH 1028**

13 **Role**

14 Directly authorizes Plaintiff’s independent equitable action. Answers the defense’s “collateral
15 attack” and “jurisdictional masquerade” themes with a holding-level California authority.

16 **Key Holding (118 Cal.App.4th at 1034-1036)**

17 An independent action to set aside a judgment procured by extrinsic fraud is not barred by res
18 judicata and may proceed in the trial court. Fraud committed by a nonparty (or conduct operating
19 outside the prior adjudication) is extrinsic and actionable.

20 **Application**

21 Plaintiff’s FAC is precisely the independent equitable action Kougasian recognizes. CSAA, Car-
22 bone, and Chambers were not parties of record in the underlying tort action; their conduct operated
23 outside the adjudication of the insured’s negligence. Kougasian forecloses the defense’s “this is
24 just an appeal” and “collateral attack” framings.

TAB 8: OLIVERA V. GRACE (1942) 19 CAL.2D 570

Role

Long-standing California Supreme Court authority confirming trial-court equity jurisdiction to entertain an independent action to set aside a judgment procured by extrinsic fraud.

Key Holding (19 Cal.2d at 575-576)

Trial courts possess inherent equity jurisdiction to set aside judgments obtained by extrinsic fraud, independent of statutory vehicles such as § 473.

Application

Section 904.1 and CCP § 473(b) do not exhaust the Court's power. Olivera confirms this Court's equity jurisdiction over the present action. The defense's appellate-routing theory (Rochin, § 904.1) cannot displace inherent equity jurisdiction recognized since 1942.

TAB 9: ESTOPPEL BY SILENCE / AUTHENTICATION BY ACQUIESCENCE

Role

Doctrinal cluster that independently bars Defendants from contesting authenticity, receipt, or provenance of the 911/BWC/CAD materials—regardless of how the Demurrer or Anti-SLAPP merits are resolved.

Evidence Code § 623 (Estoppel by Silence)

Elements under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493:

1. Knowledge or notice of a fact;
2. Opportunity to speak or act in response;
3. A reasonable person in the party's position would have spoken or acted;
4. The party remained silent or inactive.

Application:

Element	Evidence
Knowledge	Materials served Aug–Sep 2022; Rosario depo 8/18/22 & Abdelhalim depo 9/30/22 (Chambers; 911-related testimony); Reyna subpoena 2/1/24. Defense knowledge included the content (operator/yes; Rosario voice; Rosemond eyewitness), not merely file existence.
Opportunity	883 days (Aug 18, 2022 – Jan 17, 2025) to file motion to compel, discovery objection, or meet-and-confer
Reasonableness	A reasonable attorney would raise authenticity concerns during discovery, not on eve of trial
Silence	No objection until MIL 6/17 on Jan 17, 2025

Conclusion: Defendants are estopped from contesting what they acquiesced to for 883 days.

Evidence Code § 1414(b) (Authentication by Acquiescence)

Key Holding: A writing may be authenticated by evidence that a party against whom it is offered has “treated it as authentic.”

Defense Conduct Treating Materials as Authentic:

1. Deposition course (8/18/22 & 9/30/22): Chambers appeared; Abdelhalim 911-related testimony; no written authenticity challenge in 883-day window
2. File transfer (5/4/23): Substitution transferred file as authentic
3. Compex subpoena (2/1/24): Reyna subpoenaed identical materials
4. CAD transmission (9/9/24): CAD identifiers served without objection
5. Trial curation (4/16/25): Defense curated “five videos” for jury

Conclusion: 883-day course of conduct authenticates the materials; waives any challenge.

Judicial Estoppel (Jackson v. County of Los Angeles, MW Erectors)

Five-Element Test:

Element	Satisfied?
Same party took two inconsistent positions	YES: Position A (“news to me”) vs. Position B (“provided by Dolan”)
In judicial proceeding	YES: MILs, hearings, trial
First position accepted by tribunal	YES: Court said “I see. Okay.” and denied continuance
Not due to ignorance, fraud, or mistake	YES: “for whatever, sure” shows casual familiarity
Derived unfair advantage	YES: Exclusionary rulings, 9–3 verdict

Conclusion: Defense cannot retain verdict procured through Position A when Position B proves it false.

CCP § 2023.010 Discovery Misuse

Defendants’ strategic silence—failing to raise authenticity challenges during 883-day window, then asserting them on eve of trial to exclude evidence—constitutes misuse of the discovery process under CCP § 2023.010(d) and (e), warranting evidence sanctions under § 2023.030.

SECTION X: BENCH BRIEF ON FATAL DEFECTS IN DEFENDANTS’ DEMURRER AND SPECIAL MOTION TO STRIKE

INTRODUCTION

This Section X is offered as a single scroll-length ruling guide. It assumes the pivot authorities in Section 1 above, especially Tab 1 (Park gravamen) and Tab 4 (Flatley read as a whole). Where analysis overlaps those tabs, this section cross-references rather than repeats block quotations.

Both motions turn on whether Plaintiff’s sole cognizable theory, an independent action in equity to set aside judgment for extrinsic fraud, is legally cognizable and triable on the pleaded facts and the certified record. Defendants recharacterize that theory as collateral relitigation, intrinsic fraud, or generic litigation advocacy entitled to immunity.

A recurring factual posture appears in the moving papers: Defendants do not dispute that the

1 alleged conduct occurred; they assert immunity, privilege, or procedural bars. That posture matters
2 at the demurrer and Anti-SLAPP steps where well-pleaded facts must be accepted as true or viewed
3 in Plaintiff's favor, as the standards below describe.

4 5 **STANDARDS OF DECISION**

6 **Demurrer.** The Court tests the complaint's four corners under Code of Civil Procedure sections
7 430.10 and 430.50. All well-pleaded facts are accepted as true; unclear facts are liberally con-
8 strued. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Aubry v. Tri-City Hospital Dist. (1992) 2
9 Cal.4th 962, 967.) Conclusory labels do not defeat specific factual allegations. (Serrano v. Priest
10 (1971) 5 Cal.3d 584, 591.)

11 **Anti-SLAPP.** At step one, the Court isolates the gravamen of the claim and asks whether the
12 injury-producing act arises from protected speech or petitioning at the correct level of abstraction.
13 (Park v. Board of Trustees (2017) 2 Cal.5th 1057, 1061-1064; Bonni v. St. Joseph Health System
14 (2021) 11 Cal.5th 995, 1010-1012.) Mixed-conduct complaints require parsing under Baral v.
15 Schnitt (2016) 1 Cal.5th 376, 396. At step two, the plaintiff need only show a minimum quantum
16 of legal sufficiency and triability; evidence is viewed in the plaintiff's favor. (Soukup v. Law
17 Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291; Mann v. Quality Old Time Service (2004)
18 120 Cal.App.4th 90, 105.)

19 **Independent equitable action.** California recognizes an independent action in equity to set aside
20 a judgment procured by extrinsic fraud, with timeliness and scope governed by equity principles
21 including laches. (Olivera v. Grace (1942) 19 Cal.2d 570, 575-576; In re Marriage of Stevenot
22 (1984) 154 Cal.App.3d 1051, 1068; Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471; Kougasian v.
23 TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034-1037.)

PART III. DEFECTS COMMON TO BOTH MOTIONS (TIER 1 AND RELATED ERRORS)

III.A. Procedural contamination (“standard bleed”)

Defense conduct. The Demurrer imports Anti-SLAPP step-two probability rhetoric, privilege tropes, or motion-for-summary-judgment standards into facial analysis (for example, characterizing Plaintiff’s fraud theory as “erroneous and speculative” or denying fraud on the merits at pages that should apply Serrano).

Controlling rule. Demurrer tests the complaint under sections 430.10 and 430.50. Anti-SLAPP uses the two-step framework under section 425.16. The standards are not interchangeable.

Effect. The Court must not weigh merits at demurrer. Arguments that treat the FAC’s fraud theory as speculative or nonexistent at the pleading stage are improper. (Committee on Children’s Television v. General Foods Corp. (1983) 35 Cal.3d 197, 213 [speaking demurrer]; Serrano v. Priest, supra, 5 Cal.3d at 591.)

Disposition consequence. Merits-dispositive rhetoric should be stricken or disregarded to the extent it functions as a speaking demurrer.

III.B. Gravamen skip (Anti-SLAPP step one)

Defense conduct. Defendants label “litigation conduct” as self-proving protected activity without isolating the injury-producing act (Anti-SLAPP MPA, p. 8, ll. 14-19, as described in Plaintiff’s GEN1 register).

Controlling rule. Park, supra, 2 Cal.5th at 1062-1064, requires isolating the specific injury-producing act. Bonni, supra, 11 Cal.5th at 1010-1012, requires claim-by-claim, act-by-act parsing. See also Section 1, Tab 1 and Tab 1A above.

Effect. The FAC’s gravamen is extrinsic fraud, tribunal reliance, and structural impairment of a fair adversary hearing, not a freestanding defamation claim.

Disposition consequence. Without step-one proof that the injury-producing act is itself protected petitioning, the motion fails prong one.

III.C. Categorical misreads of channel cases

Defense conduct. Defendants read narrow holdings (Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287; Zhang v. Superior Court (2013) 54 Cal.4th 826; Civil Code section 47(b)) as blanket immunity against fraud or equitable theories that touch insurance or litigation.

Controlling rule. Moradi-Shalal, supra, 46 Cal.3d at 305, preserves common law fraud jurisdiction. Section 47(b) targets qualifying communications and contains exceptions. Extrinsic-fraud lines remain under Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1242-1247. Kougasian, supra, 118 Cal.App.4th at 1035-1037, authorizes the independent equitable channel Plaintiff invokes.

Disposition consequence. Neither motion can treat section 47(b) as a per se bar to the FAC's theory.

III.D. Collateral attack without Crowley analysis

Defense conduct. Defendants collapse overlap with a prior judgment or pending appeal into a per se bar (Singh v. BP Amoco Corp. (2015) 227 Cal.App.4th 813; F.E.V., Wouldridge, as invoked in moving papers).

Controlling rule. Crowley v. Katleman (1994) 8 Cal.4th 666, 681-682, requires analysis of parties, issues actually litigated, and the primary right enforced. See Section 1, Tabs 6 and 6A.

Effect. The underlying trial adjudicated the primary right to be free from negligent personal injury. This action asserts the primary right to a fair adversary hearing free from extrinsic fraud and process corruption. Different primary rights defeat issue-match without further analysis.

Disposition consequence. Collateral-estoppel and collateral-attack rhetoric fails without Crowley mapping.

III.E. Communications boundary error

Defense conduct. Defendants treat all institutional conduct during litigation as privileged "communications."

Controlling rule. Kimmel v. Goland (1990) 51 Cal.3d 202, 211-212, as discussed in Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057-1062, separates privileged communications from unprotected noncommunicative conduct except where conduct is necessarily related to a privileged communi-

1 cation.

2 **Effect.** The FAC alleges a two-phase pattern beginning with out-of-court conduct: withholding
3 and failing to convey production history during the file transfer to successor counsel. That non-
4 communicative channel is not coextensive with section 47(b).

5 **Disposition consequence.** Privilege analysis must attach to specific communications, not to every
6 alleged act.

7 **III.F. Flatley selective read**

8 **Defense conduct.** Defendants emphasize Flatley v. Mauro (2006) 39 Cal.4th 299, 322, finality
9 policy while minimizing the illegal-conduct exception (Anti-SLAPP MPA, p. 9, ll. 17-21).

10 **Controlling rule.** Flatley, supra, 39 Cal.4th at 320-325: petitioning activity illegal as a matter of
11 law is not shielded by section 425.16. See Section 1, Tab 4.

12 **Effect.** Fraud on the tribunal is treated as illegal conduct in this doctrinal cluster.

13 **Disposition consequence.** Flatley must be read whole; the exception preserves Plaintiff's channel.

14 **III.G. Precedent truncation pattern (candor to the tribunal)**

15 **Defense conduct.** Selective quotation of Kulchar, Aldrich, Moradi-Shalal, and Flatley for broad
16 policy while omitting limiting principles: (1) Flatley finality without illegal-conduct lines; (2)
17 Kulchar "failed to assemble evidence" without the parallel branch for a party "fraudulently pre-
18 vented" from presenting a claim; (3) Aldrich "extrinsic" definition without fact-specific application
19 to what the jury actually decided; (4) Moradi-Shalal immunity discussion without page 305's fraud
20 preservation.

21 **Candor notes (assertive).** Defendants cite Church of Scientology v. Wollersheim (1996) 42
22 Cal.App.4th 628 with a "(disapproved of on other grounds)" parenthetical that obscures that Equilon
23 Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 66, footnote 5, disapproved the precise
24 proposition on which Defendants rely. Defendants cite federal United States v. Throckmorton
25 (1878) 98 U.S. 61 without acknowledging its non-binding status and the evolution of California's
26 extrinsic-fraud framework under Kulchar, Westphal v. Westphal (1942) 20 Cal.2d 393, 397, and
27 Kougasian.

28 **Disposition consequence.** The Court may appropriately read defense authority with skepticism

1 where controlling limitations were not carried forward.

2 **III.H. Binding judicial admissions in moving papers**

3 **Source.** Defendants’ briefing treats the gravamen as conceded conduct presented under immunity
4 theories.

5 **Examples.** (1) Anti-SLAPP MPA, p. 12, ll. 28, through p. 13, l. 2: conduct “squarely within the
6 judicial proceeding.” (2) Demurrer MPA, p. 6, ll. 15-18: file transfer without ensuring documen-
7 tation and conveyance of production history to successor counsel. (3) Anti-SLAPP MPA, p. 11, l.
8 7: conduct characterized as, if true, negligence.

9 **Controlling rule.** Admissions in briefs bind the party making them. (Valerio v. Andrew Youngquist
10 Constr. (2002) 103 Cal.App.4th 1264, 1271.)

11 **Disposition consequence.** Those concessions align with the FAC’s mechanism for extrinsic fraud
12 (stripped file, reliance, tribunal effects).

13 **III.I. “Evidence went to the jury” strawman**

14 **Defense conduct.** Defendants substitute downstream exposure to the jury for upstream impairment
15 of authentication, subpoena strategy, and adversary hearing integrity (Demurrer MPA, p. 4, ll. 18-
16 21).

17 **Controlling rule.** Extrinsic fraud is measured by what was prevented, not only by what later
18 surfaced. (Kulchar v. Kulchar, supra, 1 Cal.3d at 471.)

19 **Factual incorporation by reference.** 801-DEFENSE-COURT/DRAFT/11-JUDICIAL-ADMISSION-
20 MATRIX.md; 801-DEFENSE-COURT/DRAFT/11-TRANSCRIPT-APPENDIX-A-911-BWC-DEFENSE-
21 DENIAL-OF-RECEIPT.md. Hearing transcript, February 18, 2025, p. 141 (“news to me”); Re-
22 porter’s Transcript, vol. 7, p. 213, ll. 13-15 (contradictory provenance representation).

23 **Disposition consequence.** Neither demurrer nor Anti-SLAPP prong two may erase facts the Court
24 must accept or credit at the applicable standard.

25 **III.J. RFJN overreach**

26 **Defense conduct.** Code of Civil Procedure section 430.70 and Evidence Code section 452 requests
27 are used as substitutes for facial analysis or as merits proofs.

28 **Controlling rule.** Demurrer looks to the complaint and limited judicial notice of noncontroversial

1 matters, not disputed truth of exhibit contents.

2 **Disposition consequence.** RFJN packets should not supply dispositive merits facts on demurrer.
3 See 801-DEFENSE-COURT/DRAFT/03-OBJECTION-TO-DEFENDANTS-RFJN.md and 801-
4 DEFENSE-COURT/DRAFT/12-RJN-HEARING-TRANSCRIPTS.md.

5 **III.K. Appeal-route substitution and jurisdictional masquerade**

6 **Defense conduct.** Section 904.1 and Rochin v. Pat Johnson Manufacturing Co. (1998) 67
7 Cal.App.4th 1228 are framed as stripping the Superior Court of power to hear an independent
8 equitable action (Demurrer MPA, p. 9, ll. 6-11).

9 **Controlling rule.** Section 904.1 governs appellate jurisdiction from a judgment; it does not abol-
10 ish inherent equity jurisdiction to vacate a judgment procured by fraud on the tribunal. (Olivera
11 v. Grace, supra, 19 Cal.2d at 575-576.) Rochin addresses post-judgment trial court power in a
12 different posture; it does not convert this FAC into an improper appeal.

13 **Disposition consequence.** Jurisdictional demurrer grounds framed in this manner should be over-
14 ruled.

16 **PART IV. ANTI-SLAPP-SPECIFIC DEFECTS**

17 **IV.A. Prong-one gravamen: Park step skipped (AS-1)**

18 Defendants apply Park rhetoric at step two as part of a privilege wall, assuming that because
19 conduct occurred during litigation, petitioning is the wrong. Park and Martinez v. Metabolife Int'l,
20 Inc. (2003) 113 Cal.App.4th 181, 188 (principal thrust), require the gravamen filter at step one.
21 Cross-reference Part III.B and Section 1, Tab 1.

22 **IV.B. Prong-two showing and triability (AS-2)**

23 Under Soukup and Mann, supra, Plaintiff need only clear a minimum threshold. The Judicial
24 Admission Matrix, Transcript Appendix A, and related hearing materials supply a prima facie
25 channel on suppression and reliance; Defendants' reply record does not squarely negate the specific
26 transcript lines Plaintiff highlights.

1 **IV.C. Fee reciprocity under Code of Civil Procedure section 425.16(c)(1) (AS-3)**

2 If the Court finds the motion frivolous or brought solely to cause unnecessary delay, fees may fol-
3 low under subdivision (c)(1). The Tier 1 errors above support that request in Plaintiff’s discretion.

4 **IV.D. Additional spine items (AS-4 through AS-6)**

5 **AS-4 (privilege overlay on noncommunicative facts).** Tied to Part III.C and III.E; 801-DEFENSE-
6 COURT/DRAFT/02-OPPOSITION-TO-ANTI-SLAPP-MPA.md §§ III and IV.

7 **AS-5 (probability and merits at step one).** Tied to Part III.A; same Opposition § II.

8 **AS-6 (authentication, estoppel, acquiescence).** Tied to Tabs 8 and 9 above and 801-DEFENSE-
9 COURT/DRAFT/09-BRIEF-RE-ESTOPPEL-WAIVER-AUTHENTICATION-ACQUIESCENCE.md;
10 801-DEFENSE-COURT/DRAFT/10-ESTOPPEL-EVIDENTIARY-APPENDIX.md.

11
12 **PART V. DEMURRER-SPECIFIC DEFECTS**

13 **V.A. Jurisdictional bar and appeal masquerade (D-1)**

14 Cross-reference Part III.K; Olivera; Kougasian.

15 **V.B. Duplicate action and another action pending (D-2)**

16 Code of Civil Procedure section 430.10(c) requires the same parties on the same cause. The ap-
17 peal captioned Rosario v. Abdelhalim involves a single defendant and negligence theories. This
18 action names additional institutional and counsel defendants and sounds in equitable vacatur. Dif-
19 ferent parties and different primary rights defeat the ground. (Plant Insulation Co. v. Fibreboard
20 Corp. (1990) 224 Cal.App.3d 781, 788.) For collateral-estoppel and res judicata arguments tied to
21 the same posture (spine D-3), see Part III.D and 801-DEFENSE-COURT/DRAFT/09-BRIEF-RE-
22 ESTOPPEL-WAIVER-AUTHENTICATION-ACQUIESCENCE.md.

23 **V.C. Section 473(b) limitations as a false temporal bar (D-8)**

24 Section 473(b)’s six-month window governs the statutory relief motion for mistake, inadvertence,
25 surprise, or excusable neglect. It does not govern an independent action in equity for extrinsic
26 fraud. (Olivera v. Grace, supra, 19 Cal.2d at 575; Bennett v. Hibernia Bank (1956) 47 Cal.2d
27 540, 558; In re Marriage of Stevenot, supra, 154 Cal.App.3d at 1068.) Laches, not section 473(b),
28 supplies the equitable time inquiry.

1 **V.D. Extrinsic versus intrinsic fraud (D-4)**

2 The FAC targets out-of-court lulling and court-facing misrepresentations affecting tribunal man-
3 agement, not only jury weighing of evidence presented at trial. That channel is extrinsic under
4 Kulchar and Westphal, supra.

5 **V.E. Litigation privilege blanket (D-5)**

6 Cross-reference Part III.C and III.E; Kimmel; Action Apartment.

7 **V.F. Uncertainty demurrer (D-6)**

8 Uncertainty demurrers are disfavored. (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019)
9 38 Cal.App.5th 677, 695; Khoury v. Maly's of California (1993) 14 Cal.App.4th 612, 616.) The
10 FAC supplies who, what, when, and how; Defendants' lengthy MPA demonstrates comprehension,
11 which refutes an uncertainty theory.

12 **V.G. Pleading sufficiency and Serrano (D-7)**

13 Serrano, supra, separates conclusions from facts; it does not invite the Court to discard well-
14 pleaded facts as "nonexistent."

15 **V.H. Standing and misjoinder (D-9)**

16 Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268, addresses direct actions for policy benefits,
17 not this equitable fraud-on-the-court theory. Norton v. Hines (1975) 49 Cal.App.3d 917, reflects
18 adverse-party counsel immunity in ordinary tort channels, not a cap on naming participants in
19 fraud on the tribunal. Estate of Sanders (1985) 40 Cal.3d 607, 615-616, recognizes attorneys who
20 participate in fraud on the court as proper parties. The FAC pleads CSAA's agency and ratification
21 under Civil Code section 2338.

22 **V.I. RFJN overreach (D-10)**

23 Cross-reference Part III.J and 801-DEFENSE-COURT/DRAFT/03-OBJECTION-TO-DEFENDANTS-
24 RFJN.md.

25 **V.J. Meet-and-confer defect (Code of Civil Procedure section 430.41)**

26 Section 430.41 requires a meaningful meet-and-confer with a declaration describing efforts. The
27 O'Connell declaration (Clerk File No. 10057589) is dated February 13, 2026, roughly two months
28 before the Demurrer filing and does not demonstrate substantive engagement with the FAC as

amended. See 801-DEFENSE-COURT/DRAFT/04-EVIDENTIARY-OBJECTIONS-TO-DECLARATIONS.md.

PART VI. REQUESTED RELIEF

Demurrer. Overrule in full. If the Court identifies any pleading refinement, grant leave to amend rather than sustaining without leave, consistent with Blank v. Kirwan, supra, 39 Cal.3d at 318.

Anti-SLAPP. Deny the motion. Plaintiff requests a finding under Code of Civil Procedure section 425.16(c)(1) where the record supports it, with an award of fees and costs.

SECTION 2: ORAL ARGUMENT FRAMEWORK (Q1-Q10)

Q1: GRAVAMEN AND ANTI-SLAPP STEP ONE

Question the Court may ask: > “On Anti-SLAPP step one, what is the specific injury-producing act on which plaintiff’s equitable theory rests, and is that act protected petitioning at the proper level of abstraction?”

Plaintiff’s Response: The injury-producing acts are: (1) out-of-court communications inducing reliance on evidence resolution; (2) file transfer without production history conveyance; (3) court-facing misrepresentations inducing procedural rulings.

These are not “speech or petitioning activity itself.” They are extrinsic fraud channels.

Pivot: Park (2 Cal.5th at 1062-1064); Martinez (113 Cal.App.4th 181).

Q2: NONCOMMUNICATIVE CONDUCT

Question the Court may ask: > “Which FAC paragraphs supply noncommunicative institutional conduct that is not reducible to ‘speech or petitioning activity itself’?”

Plaintiff’s Response: The FAC alleges: - File custody failures during substitution - Production-history omission - Agency oversight failures by CSAA - Procedural-window narrowing through process failures

None of these are “communications” under Kimmel.

Pivot: Kimmel (51 Cal.3d 202); Rusheen (37 Cal.4th 1048).

Q3: EXTRINSIC FRAUD EXCEPTION

Question the Court may ask: > “Do any pleaded channels fall within the extrinsic fraud exception to the litigation privilege?”

Plaintiff’s Response: Yes. The FAC alleges a two-phase pattern: out-of-court lulling followed by court-facing misrepresentations that induced tribunal reliance. This is textbook extrinsic fraud under Kulchar and falls within the Action Apartment exception.

Pivot: Action Apartment (41 Cal.4th at 1242-1247); Flatley read as a whole.

Q4: POLLOCK AND PRIVILEGE DOUBTS

Question the Court may ask: > “Does Pollock resolve this case?”

Plaintiff’s Response: No. Pollock (112 Cal.App.4th 1416) resolves **doubts** in favor of privilege only where privilege coverage is already engaged. It does not delete Park step one. It does not override extrinsic fraud exceptions.

Pivot: Pollock bounded role; Park still mandatory.

Q5: COLLATERAL ESTOPPEL AND PRIMARY RIGHTS

Question the Court may ask: > “Which issues were actually litigated in the underlying trial, and does collateral estoppel apply?”

Plaintiff’s Response: The underlying trial adjudicated: (1) whether the Insured was negligent; (2) liability for the car collision. It did **not** adjudicate: (1) whether Defendants withheld production history; (2) whether misrepresentations were made to the Court; (3) whether Plaintiff was deprived of a fair hearing.

Different primary rights. No issue-match. No estoppel.

Pivot: Crowley (8 Cal.4th 666); Singh (227 Cal.App.4th 813) for issue-match requirement.

Q6: APPEAL POSTURE AND SECTION 904.1

Question the Court may ask: > “What is the narrow holding of Rochin, and does Section 904.1 bar this action?”

Plaintiff’s Response: Rochin (67 Cal.App.4th 1228) addresses post-judgment trial court power. Section 904.1 is a routing statute for appeals. Neither is a merits immunity. Plaintiff has not filed an appeal. Plaintiff has filed an independent equitable action. The FAC states a distinct theory: extrinsic fraud in the procurement of the judgment.

Pivot: Section 904.1 scoped to appeal route; Rochin scoped to trial court post-judgment power.

Q7: DEMURRER FACIAL ASSUMPTIONS

Question the Court may ask: > “Which allegations must the Court accept as true on demurrer?”

Plaintiff’s Response: All well-pleaded facts. The FAC’s allegations of out-of-court representations, file transfer failures, court-facing misrepresentations, and tribunal reliance must be accepted as true. Defendants’ assertions that there was “no fraud” or that the theory is “speculative” violate Serrano.

Pivot: ABF Capital (130 Cal.App.4th 825); Serrano (5 Cal.3d 584).

Q8: UNCERTAINTY DEMURRER

Question the Court may ask: > “Is uncertainty demurrer appropriate here?”

Plaintiff’s Response: No. Under A.J. Fistes (38 Cal.App.5th 677, 695), demurrers for uncertainty are “disfavored” and granted only when the complaint is “incomprehensible.”

The FAC identifies: who (CSAA, Carbone, Chambers); what (two-phase pattern of misrepresentation); when (during underlying litigation and at trial); how (induced procedural rulings). Defendants responded with 20 pages of briefing. The FAC is not uncertain.

Pivot: Young v. Gannon (97 Cal.App.4th 209); A.J. Fistes (38 Cal.App.5th 677).

Q9: RFJN AND RECORD LIMITS

Question the Court may ask: > “What is judicially noticeable on demurrer?”

Plaintiff’s Response: Document existence, not truth of contents. Defendants use RFJN to insert merits evidence. This exceeds the demurrer record. The Court may notice the judgment exists but cannot notice for truth that “there was no fraud” or that “all issues were adjudicated.”

Pivot: Code Civ. Proc. section 430.70; Evid. Code section 452; Arce (181 Cal.App.4th 471).

Q10: THE SUCCESSOR COUNSEL DEFENSE

Question the Court may ask: > “Didn’t successor counsel simply make a mistake by not having the production history?”

Plaintiff’s Response: Extrinsic fraud does not require every lawyer to be in on the conspiracy. If prior counsel deliberately or recklessly strips the production history from the file, and successor counsel relies on that stripped file to misrepresent the provenance of evidence to the judge, the fraud on the tribunal is complete. The institutional principal, CSAA, directed both acts.

The concealment does not become innocent because it was routed through an unsuspecting intermediary. Kulchar asks whether Plaintiff was kept in ignorance and unable to present their case — not whether every participant shared the same mental state. Agency liability also attaches to CSAA regardless of successor counsel’s state of mind.

Pivot: Kulchar (1 Cal.3d 467); Kougasian (118 Cal.App.4th at 1034-1036); agency principles under Civ. Code § 2338.

Q11: CHAMBERS DECLARATION — PERSONAL KNOWLEDGE / SHAM AFFIDAVIT

Question the Court may ask: > “Does the Chambers declaration establish personal knowledge of the file-transfer contents and what was conveyed to successor counsel?”

Plaintiff’s Response: It does not. The Chambers declaration asserts conclusions about what the file “contained” and what was “conveyed” to PSA without foundation for personal knowledge of

1 either the production-history documents or the substitution transfer. Under Evid. Code § 702 and
2 Code Civ. Proc. § 2015.5, a declaration must affirmatively show the declarant’s competency to
3 testify to each fact stated.

4 If any portion of the declaration contradicts Chambers’ prior discovery responses or deposition
5 testimony in the underlying matter, the sham-affidavit rule bars its use to create a factual showing.
6 Because the Chambers declaration is the defense’s sole vehicle for closing the factual hole on
7 what was transferred, its foundational defects are dispositive of the Anti-SLAPP step-two record
8 Defendants attempt to manufacture.

9 **Pivot:** Evid. Code § 702; Code Civ. Proc. § 2015.5; Bozzi v. Nordstrom, Inc. (2010) 186
10 Cal.App.4th 755, 761; sham-affidavit rule.

11 **Q12: “WHY DIDN’T PLAINTIFF OBJECT EARLIER?”**

12 **Question the Court may ask:** > “If Plaintiff knew the evidence was produced, why didn’t Plain-
13 tiff object when defense counsel claimed it was unknown? Isn’t this Plaintiff’s fault for not speak-
14 ing up?”

15 **Plaintiff’s Response:** This question inverts the burdens and ignores the 883-day timeline. Plaintiff
16 did speak up—through Jessup’s sworn testimony at the February 18, 2025 hearing, where he testi-
17 fied under oath that the materials were “produced to defense counsel” and “served on them” during
18 discovery in August–September 2022. The Court heard that testimony directly. The problem is not
19 that Plaintiff failed to object; the problem is that the tribunal accepted defense counsel’s “news to
20 me” representation without verification, even after Jessup’s contrary testimony.

21 More fundamentally, the estoppel runs the other direction:

- 22 1. **Defense had the duty to object timely.** Under CCP §§ 2030.290 and 2031.240, objections
23 to discovery not raised within the statutory period are waived. By analogy, authenticity ob-
24 jections not raised during the 883-day window are waived. Plaintiff had no obligation to
25 anticipate that defense counsel would suddenly reverse course after 883 days of silence.
- 26 2. **Defense induced reliance through silence.** The four-element test under City of Long Beach
27 v. Mansell asks whether defense counsel had knowledge, opportunity, a reasonable expecta-
28

tion to speak, and remained silent. All four are satisfied. Plaintiff reasonably relied on that silence by not taking foundation depositions or filing authentication motions—because there was no indication that authenticity was contested.

3. **The production-deposition-subpoena-substitution chain proves defense knew.** Jessup’s February 18, 2025 testimony; the August 18, 2022 Rosario and September 30, 2022 Abdelhalim deposition transcripts (Chambers; 911-related examination); the February 1, 2024 Reyna Compex subpoena to SFPD—requesting the identical materials—and the Substitution of Attorney (Transaction ID #69953800) are all consistent with receipt and use in the ordinary course. If defense counsel claim they were ignorant, that ignorance is manufactured—and it is estopped.

4. **The April 16, 2025 admission confirms what was always true.** When Navaratnasingham stated “They were provided by Dolan,” she was not announcing a new discovery. She was casually confirming a settled fact. The dismissive phrasing—“for whatever, sure”—reveals that the Dolan origin was known all along. Defendants cannot now blame Plaintiff for not objecting to a false position that Defendants themselves created.

Pivot: CCP §§ 2030.290, 2031.240 (waiver by failure to object timely); City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493 (estoppel by silence); Evid. Code § 1414(b) (authentication by acquiescence); Tab 9 (full estoppel framework).

SECTION 3: CLOSING ORIENTATION — THE SIX TACTICAL STRIKES

1. **Posture Trap:** Defendants’ motions proceed as if the allegations were true and assert legal immunity.
2. **Precedent Truncation:** Defendants quote Flatley’s policy paragraph without addressing its illegal-conduct limit; quote Park while skipping gravamen.
3. **Standard Bleed:** Defendants’ Demurrer imports MSJ and step-two probability tests that violate Serrano.
4. **Doctrine Collapse:** Defendants fuse Anti-SLAPP, section 47(b), and collateral estoppel to avoid passing any single doctrine’s mandatory tests.

1 5. **Narrative Reframe:** Defendants substitute “jury saw the evidence” for the actual gravamen:
2 process corruption.

3 6. **Jurisdictional Masquerade:** Defendants treat an independent equitable action as an “ap-
4 peal.”

5 **IF THE COURT STARTS WITH Q1 AND Q3**

6 If the Court begins with gravamen (Q1) and extrinsic fraud exceptions (Q3), most defense authority
7 collapses into bounded issues. The wall of authority substitutes volume for analysis, and the correct
8 analytical framework exposes the evasion.

10 **BENCH SCRIPT: “IF THE COURT GRANTS NO RELIEF TODAY”**

11 If the Court is not prepared to overrule the Demurrer and deny the Anti-SLAPP motion outright,
12 Plaintiff respectfully proposes the following off-ramp rather than sustaining without leave:

13 “If the Court concludes that any count of the FAC is not presently pleaded with suffi-
14 cient specificity, Plaintiff respectfully requests leave to amend rather than a sustaining
15 without leave. Plaintiff can proffer additional specific facts including: (a) the dates
16 and substance of each out-of-court representation; (b) the identity of the file-transfer
17 recipients and the documents omitted; (c) the specific CSAA directives and ratifications
18 supporting agency; and (d) the specific continuance or evidentiary ruling that closed the
19 procedural window. Under Blank v. Kirwan and the liberal amendment standard, leave
20 is appropriate where there is a reasonable possibility of curing any defect, and Plaintiff
21 represents that the proffered facts would do so.”

22 For a complete mapping of how the concurrently tendered Second Amended Complaint cures each
23 alleged defect without relying on future promises of drafting, the Court is respectfully referred to
24 Document 17 (SAC Cure Matrix and Pendency Notice).

25 On the Anti-SLAPP motion, if the Court is inclined to reach step two, Plaintiff requests the oppor-
26 tunity to supplement the declaration record before any merits ruling, consistent with the “minimum
27 merit” standard.

28 Preserving the case through leave-to-amend is the statistically likely middle-ground disposition on

1 any close count, and is the appropriate equitable posture where the gravamen is procurement-level
2 fraud on the tribunal.

3 _____
4 **END OF BENCH BINDER**

Dated: April 18, 2026



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